

3. CU0001697 County of Nevada vs. Wild Earth Property LLC, et al.

Receiver's March 20, 2026, motion for discharge of receiver and exoneration of surety is granted.

A receiver is an independent third party, a “hand” or “agent” of the court that acts only upon the direction and authority of the appointing court. *Takeba v. Superior Court* (1919) 43 Cal. App. 469, 475. All receiver actions undertaken are subject to final ratification by the court, and the discharge hearing is the appropriate venue for a court to utilize its discretion on all receivership actions. *Hanno v. Superior Court* (1939) 30 Cal.App.2d 639, 641. Once the work of a receivership is finished, the receiver is required to submit a motion or stipulation for discharge, and a summary of all accounts, payments, and debts of the receivership. See California Rules of Court, Rules 3.1183 and 3.1184. The order discharging the receiver is necessary to fully complete the receivership and end the court's involvement. *Jun v. Myers* (2001) 88 Cal.App.4th 117, 123-24. The discharge does not happen automatically and must be requested. *Scoville v. De Bretteville* (1942) 50 Cal.App.2d 622, 632; *Hanno*, 30 Cal.App.2d at 641. The discharge order settling the account is the final judgment in a receivership proceeding. *Aviation Brake Systems, Ltd. v. Voorhis* (1982) 133 Cal.App.3d 230, 233. Because all issues concerning a receiver's actions are fully adjudicated as part of the final accounting, the discharge order operates as *res judicata* to any claims of liability against the receiver in his official capacity. *Id.* at 234; *Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership* (2017) 8 Cal.App.5th 910, 926.

The Court has reviewed the instant motion. The Court appointed the receiver to bring the subject property into compliance with all applicable state and local laws and sell the property, which he has now completed. The Court has also previously approved the monthly accountings submitted by the receiver. The Court is satisfied that there is good cause to discharge the receiver at this time and exonerate the surety as requested.

Accordingly, the receiver's motion is granted in its entirety. The Court appreciates the dedicated service of the receiver in this matter.

4. CU0001902 Travis Gould vs. PHH Mortgage Corporation, et al.

No appearances are required. A party reserved a motion hearing date; however, no motion has been filed. Moreover, a notice of settlement has been filed. The hearing today is withdrawn from calendar. The case management conference is confirmed for June 1, 2026, 09:00.

5. CU0002002 Cynthia Repella vs. Tania Blair, et al.

Appearances are required. Plaintiff filed a notice of a bankruptcy stay on September 19, 2025. The Court must be advised whether the stay remains effective or otherwise.

Assuming the stay has been lifted, Plaintiff filed a January 26, 2026, motion for leave to file an amended complaint. There is no proof of service of the motion on Defendant and there is no response from Defendant. That said, Defendant indicates in her April 1, 2026 case management conference statement that she intends to file a demurrer *if* the motion is granted (suggesting she had some notice of the motion). The parties shall verify whether Defendant has been served with

the motion and Defendant shall verify whether she opposes the same. Absent opposition, the Court is inclined to grant the motion.

6. CU0002360 Melanie Highsmith, et al. vs. Samuel Miller, et al.

Plaintiff Melanie Lee Highsmith's unopposed motion for leave to request trial by jury and deposit jury fees pursuant to Code of Civil Procedure section 631(d) is granted.

The California Constitution provides that all civil litigants have the right to trial by jury, but they may waive that right in a manner prescribed by statute. (Cal. Const., art. I, § 16.) The statute implementing this provision, Code of Civil Procedure section 631 (section 631), sets forth various acts and omissions that constitute jury waiver, including failing to make a timely jury demand and failing to timely deposit a jury fee in accordance with statutory requirements. (§ 631, subd. (f).) Waiver does not categorically foreclose trial by jury; a litigant that has waived jury trial may seek relief from the waiver. The trial court has discretion whether to grant relief, on such terms as may be just. (§ 631, subd. (g) ...) *TriCoast Builders, Inc. v. Fonnegra* (2024) 15 Cal.5th 766, 773.

In deciding whether it should exercise its discretion to grant relief to a plaintiff who has waived his right to a jury trial, "a court properly considers a host of essentially equitable factors" *TriCoast*, 15 Cal.5th at 784, including, for example, "whether relief would cause hardship to other parties ... ; the timeliness of the request; the party's willingness to comply with applicable jury fee obligations; and the party's reasons for seeking the relief." *Id.* at 783.

At bar, Plaintiff inadvertently failed to post jury fees by the deadline. Zimmerman Decl., ¶ 2. Plaintiff has now posted jury fees. Zimmerman Decl., Ex. 1. Defendants have also requested a jury trial and posted jury fees. Zimmerman Decl., ¶ 4. There is no opposition and no showing of prejudice or hardship to any party. Good cause having been established, the motion is granted.

7. CU0002491 Malin Kumar Ram vs. Rodney Andrews, et al.

Defendant Charles Hasbun's January 23, 2026, demurrer is sustained as to counts four, six, eight, and nine. Plaintiff is granted leave to amend within ten (10) days of this Court's order.

Legal Standard

On demurrer, a court's function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. A court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary